

TENTATIVE RULING

Case: **Clark v. Davis Joint Unified School District**
Case No. CV2025-2838

Hearing Date: **May 19, 2026** **Department Fourteen** **9:00 a.m.**

Demurrer

Plaintiff Dino Clark's ("plaintiff") opposition to defendant Davis Joint Unified School District's ("DJUSD") demurrer to plaintiff's complaint exceeds the 15-page limit set forth in California Rules of Court, rule 3.1113(d) without prior court approval. (See Cal. Rules of Court, rule 3.1113(d), (e).) Despite the foregoing, the Court will consider the entire opposition. (Cal. Rules of Court, rule 3.1113(g) [oversize brief to be treated as a late-filed brief]; Cal. Rules of Court, rule 3.1300(d) [court has discretion to consider a late filed paper]; *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 ["a trial court has broad discretion to accept or reject late-filed papers."].) However, in the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

The Court rules on DJUSD's demurrer as follows:

- DJUSD's demurrer to the first cause of action for discrimination based on race is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The first cause of action is not uncertain because DJUSD can reasonably respond. (Govt. Code § 12940, subd. (a); *United Western Medical Centers v. Superior Court* (1996) 42 Cal.App.4th 500, 506; see *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed."].)
- DJUSD's demurrer to the second cause of action for hostile work environment race harassment is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The second cause of action is not uncertain because DJUSD can reasonably respond. (Govt. Code § 12940, subd. (j); *United Western Medical Centers, supra*, 42 Cal.App.4th at p. 506; see *Khoury, supra*, 14 Cal.App.4th at p. 616.)
- DJUSD's demurrer to the third cause of action for failure to prevent discrimination and harassment is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) As plaintiff's first (discrimination) and second (harassment) claims are not uncertain, DJUSD has failed to show that plaintiff's third cause of action is uncertain. (Govt. Code § 12940, subd. (k); *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1021; see *Khoury, supra*, 14 Cal.App.4th at p. 616.)

The Court notes that DJUSD's amended notice of demurrer states that it demurs to plaintiff's complaint on the grounds that it fails to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10(e) and it is uncertain pursuant to Code of Civil Procedure section 430.10(f). (Amended Notice of Motion, p. 3 [filed 2/19/26].) However, because DJUSD's supporting memorandum of points and authorities only addresses uncertainty, the Court did not consider whether plaintiff's complaint fails to state facts sufficient to constitute a cause of action. (Cal. Rules of Court, rule 3.1113(b); see *Hood v. Gonzales*

(2019) 43 Cal.App.5th 57, 73–74, citing *Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

The notice of demurrer does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike

DJUSD’s motion to strike portions of plaintiff’s complaint is **DENIED**. (Code Civ. Proc., § 435, 436.) The Court finds that while a motion to strike may be utilized to challenge a portion of a cause of action that violates the applicable statute of limitations, it does not clearly and affirmatively appear upon the face of plaintiff’s complaint that the challenged allegations are time-barred. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683; *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881 [“where the action may be, but is not necessarily barred.... It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred...”]; see also *Doyle v. Fenster* (1996) 47 Cal.App.4th 1701, 1707.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Ge v. Wu**

Case No. CV2025-2807

Hearing Date: **May 19, 2026**

Department Eleven

9:00 a.m.

Plaintiffs William W. Ge, Helen H. Wu, Wei Li, Jiaoming Chen, Ken Cong Wu, and Zhen Dai's motion to compel further responses to special interrogatories and requests for admission (set one) is **DENIED**. (Code Civ. Proc., §§ 2030.300, 2033.290.) Plaintiffs failed to show "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, subd. (a), 2030.300, subd. (b)(1), 2033.290, subd. (b)(1).) Specifically, plaintiffs sent one meet and confer letter and failed to respond to defendants Zhong Wu and Nancy He Wu's meet and confer letter until the day that they filed this motion. (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434-1435 & 1439 ["the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate"]; Tan decl., ¶¶ 6-8, Exhibit 4; Flaxman decl., ¶¶ 6-8, Exhibit B.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.